

24PR00574 Estate of Cheryl Ann Jackson

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-07-29

Motion: Final Distribution

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Tentative Ruling: Estate of Cheryl Ann Jackson

Case Number

24PR00574

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 07/29/2026 - 09:30

Nature of Proceedings

Final Distribution

Tentative Ruling

Probate Notes:

Appearances required.

The following issues are outstanding:

Supplement re: Heirs of Pre-deceased Spouse. The proposed distribution may not comply with the intestate distribution scheme in the Probate Code, section 6402.5. When a decedent's estate does not pass by a testamentary instrument (by failure of transfer, or omission, etc.), that property passes to the decedent's heirs as prescribed in Division 6, part 2 of the Probate Code (§§6401, et seq.). (Prob. Code, § 6400.)

Petition for Letters of Administration shows the Decedent had a pre-deceased spouse who died not more than 5 years before the death of the Decedent. Because the Decedent died intestate, this triggers an inquiry into the heirs of the pre-deceased spouse pursuant to Probate Code section 6402.5. Please provide via supplement a family tree for the pre-deceased spouse, up to the 2nd Degree of kinship on the table of consanguinity.

Proof of Service of Notice of Hearing (Form DE-120). Notice must be given 15 days prior to hearing, served on all known heirs and devisees, as well as on the Personal Representative (if not the petitioner) and special notice requestors. (Prob. Code, §§ 11601 & 1220.) Notice must be sent to the person, not the person's representative. (§1220.) Notice of the petition must be sent to any heirs listed in the supplement above.

Accounting or Waivers. Each person entitled to distribution from the estate may waive a final account by 1) filing a written waiver of account (Prob. Code, § 10954, subd. (a)(1)); OR by filing 2) proof of adequate provision for satisfaction in full of the person's interest (Id., subd. (a)(2)). If any heirs are identified in the Supplement required above, the final account must be submitted, if not waived. (Prob. Code, § 10951.)

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Appearances:

The court is open to the public for court business. The court is also conducting hearings via Zoom videoconference.

Meeting ID: 161 956 1423

Passcode: 137305

Judges

Judge Denise M. Hippach

SM Dept 1

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